

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MILAGROS APONTE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SCOTT
MULLEN, Shield No. 15758, SERGEANT JOSEPH
RIVERA, Tax No. 943738, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 17, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SCOTT MULLEN, Shield No. 15758, Bronx Gang Squad, 1 Police
Plaza, Room 1100, NY, NY
SERGEANT JOSEPH RIVERA, Tax No. 943738, Bronx Gang Squad, 1 Police Plaza,
Room 1100, NY, NY

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MILAGROS APONTE, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 19, 2017, at approximately 5:00 a.m., plaintiff Milagros Aponte was lawfully present inside of her apartment located at 1016A Kelly Street, Apt. #2, Bronx, New York, when the defendant police officers unlawfully entered the apartment without probable cause or any legal justification. The defendant officers unlawfully searched plaintiff's person and the entire apartment. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to accuse plaintiff of committing a crime or violating the law in any manner. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff until all charges against plaintiff were dismissed and sealed on October 24, 2017. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied her rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff MILAGROS APONTE is and was at all times relevant herein a resident of the State of New York.

3. POLICE OFFICER SCOTT MULLEN, Shield No. 15758, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER SCOTT MULLEN, Shield No. 15758, is and was at all times relevant herein, assigned to the Bronx Gang Squad.

5. POLICE OFFICER SCOTT MULLEN, Shield No. 15758, is being sued in his individual and official capacity.

6. SERGEANT JOSEPH RIVERA, Tax No. 943738, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT JOSEPH RIVERA, Tax No. 943738, is and was at all times relevant herein, assigned to the Bronx Gang Squad.

8. SERGEANT JOSEPH RIVERA, Tax No. 943738, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about January 25, 2018.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On October 19, 2017, at approximately 5:00 a.m., plaintiff was lawfully present inside of her apartment located at 1016A Kelly Street, Apt. #2, Bronx, New York.

20. On October 19, 2017, at approximately 5:00 a.m., the defendant police officers unlawfully entered 1016A Kelly Street, Apt. #2, Bronx, New York, and searched the apartment and the individuals present.

21. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

22. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

23. Nevertheless, plaintiff was unlawfully handcuffed, arrested, and transported against her will to the 41st Precinct where she was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

24. After several hours in unlawful custody, plaintiff was transported to Bronx Central Booking and placed in a holding cell.

25. The defendant police officers intentionally provided the Bronx County District Attorney's Office with false, misleading and incomplete information regarding their

basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes she did not commit.

26. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that plaintiff was found to be in possession of drugs.

27. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

28. On October 20, 2017, at approximately 12:30 a.m., after approximately 19 hours in unlawful custody, plaintiff was arraigned in Bronx Criminal Court and charged with crimes she did not commit.

29. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance, amongst other charges.

30. The judge set bail, which plaintiff was unable to post, and therefore plaintiff was remanded to Riker's Island.

31. On October 21, 2017, after approximately 3 days in unlawful custody, plaintiff's posted bail and she was released from custody.

32. Thereafter, plaintiff was forced to appear in Court on one additional occasion before all charges against plaintiff were dismissed on October 24, 2017.

33. As a result of the unlawful entry and search into plaintiff's apartment, she sustained property damage in the amount of approximately \$10,000.

34. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

35. The unlawful search, false arrest/ imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

45. Defendants lacked probable cause to search plaintiff.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

50. Defendants commenced and continued a criminal proceeding against plaintiff.

51. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

52. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

53. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 566 with the same force and effect as if more fully set forth at length herein.

58. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Milagros Aponte. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

59. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

65. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

66. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

67. In withholding/creating false evidence against plaintiff Milagros Aponte, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

68. As a result of the foregoing, plaintiff Milagros Aponte, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

77. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Milagros Aponte demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 17, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER SCOTT MULLEN, Shield No. 15758, Bronx Gang Squad, 1 Police Plaza, Room 1100, NY, NY
SERGEANT JOSEPH RIVERA, Tax No. 943738, Bronx Gang Squad, 1 Police Plaza, Room 1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 January 17, 2019

_____/s/_____
STUART E. JACOBS